

According to T.1676/08, the principles set out in decision G.2/10 with regard to the requirements to be met in order for amendments by the introduction of disclaimers for disclosed subject-matter to be allowable under Art. 123(2) EPC also apply with regard to the requirements for **divisional applications** under Art. 76(1) EPC; they also apply to the examination under Art. 100(c) EPC.

As in G.1/03 (and G.2/03), the Enlarged Board in G.2/10 identified board decisions which should no longer be applied. Thus, it criticised the approach taken in T.1050/99 and T.1102/00.

c) Explanations in G 1/16

In the case law that followed these decisions of the Enlarged Board of Appeal there was no uniformity of approach regarding the application of G.2/10 to "undisclosed disclaimers" (see Case Law of the Boards of Appeal, 8th ed. 2016, II.E.1.5.2(b) and the summary in G.1/16, point 24 of the Reasons). This led to the referring decision T.437/14 of 17 October 2016 asking in particular whether the standard referred to in G.2/10 for the allowability of disclosed disclaimers under Art. 123(2) EPC, i.e. whether the skilled person would, using common general knowledge, regard the subject-matter remaining in the claim after the introduction of the disclaimer as explicitly or implicitly, but directly and unambiguously, disclosed in the application as filed, was also to be applied to claims containing undisclosed disclaimers.

In G.1/16 (OJ 2018, A70) the Enlarged Board considered that the choice of the proper test for assessing the allowability of any disclaimer is determined by the fundamental distinction, in terms of their legal nature, between disclosed disclaimers and undisclosed disclaimers. That distinction necessitates providing **for each of the two classes of disclaimer a single specific test** for assessing whether the introduction of a given disclaimer is in compliance with Art. 123(2) EPC. Therefore, for undisclosed disclaimers the proper test is whether the criteria of G.1/03 (OJ 2004, 413) are fulfilled, and for disclosed disclaimers the proper test is the gold standard disclosure test of G.2/10 (OJ 2012, 376).

The assessment of the allowability of a claim amendment by an undisclosed disclaimer is governed exclusively by the criteria laid down in G.1/03. No modifications are to be made to, nor any conditions added which go beyond, the criteria of G.1/03.

The Enlarged Board confirmed that an amendment by an undisclosed disclaimer may be allowable in the three situations mentioned in G.1/03 (point 2.1 of the Order), i.e. in order to (1) restore novelty by delimiting a claim against state of the art under Art. 54(3) EPC; (2) restore novelty by delimiting a claim against an accidental anticipation under Art. 54(2) EPC; or (3) disclaim subject-matter which, under Art. 52 to 57 EPC, is excluded from patentability for non-technical reasons.

In addition, the undisclosed disclaimer must not be related to the teaching of the invention, as already held in G 1/03 (point 2.3 of the Order; point 2.6 of the Reasons). In endorsing this concept, the Enlarged Board provided the following explanations:

The question to be asked in this context is not whether an undisclosed disclaimer quantitatively reduces the original technical teaching – this is inevitably the case – but rather whether it **qualitatively changes** it in the sense that the applicant's or patent proprietor's **position with regard to other requirements for patentability** is improved. If that is the case, then the original technical teaching has been changed by the introduction of the disclaimer in an unallowable way. And as a consequence, the technical teaching based on the amended claim, i.e. on the remaining subject-matter without the disclaimer, can no longer be considered as belonging to the invention as presented in the application as originally filed.

For the sake of completeness, the Enlarged Board added that the prohibition of a qualitative change in the original teaching applies in an absolute way, i.e. not only with regard to the prior art which provides the basis for the undisclosed disclaimer, but also to the entire prior art relevant for the assessment of inventive step. In practical terms, this means that the evaluation of inventive step has to be carried out disregarding the undisclosed disclaimer, as proposed in T 710/92. In this way, any unallowable modification of the original technical teaching in the assessment of inventive step is avoided.

The Enlarged Board concluded that the introduction of an undisclosed disclaimer must fulfil one of the criteria laid down in point 2.1 of the Order of decision G 1/03, but may not provide a technical contribution to the claimed subject-matter of the application as filed; in other words, the identity of the invention as originally filed must remain unchanged by the subject-matter remaining in the claim after the introduction of the undisclosed disclaimer.

The Enlarged Board answered the questions referred to it as follows:

For the purpose of considering whether a claim amended by the introduction of an undisclosed disclaimer is allowable under Art. 123(2) EPC, the disclaimer must fulfil one of the criteria set out in point 2.1 of the Order of decision G 1/03.

The introduction of such a disclaimer may not provide a technical contribution to the subject-matter disclosed in the application as filed. In particular, it may not be or become relevant for the assessment of inventive step or for the question of sufficiency of disclosure. The disclaimer may not remove more than necessary either to restore novelty or to disclaim subject-matter excluded from patentability for non-technical reasons.

1.7.3 Decisions applying the criteria established by the Enlarged Board in G 1/03 and G 1/16

a) Accidental anticipation

In G 1/16 (OJ 2018, A70, point 45 of the Reasons) the Enlarged Board held with reference to G 1/03 (OJ 2004, 413, point 2.1 of the Order and point 2.2 and sub-points of the

Reasons) that an anticipation is accidental if it is so unrelated to and remote from the claimed invention that the person skilled in the art would never have taken it into consideration when making the invention.

In T 500/00 the amendment was an undisclosed disclaimer introduced by the appellant into claim 1 during the examining proceedings in response to an objection of lack of novelty based on prior art document D1. The question that arose was whether or not the disclosure of D1 was accidental. D1 and the application in suit concerned the same technical field, had, except for the disclaimed component, identical compositions and related to the same purpose of sufficient curing. Moreover, the same technical problem underlay both the patent in suit and D1. Since the skilled person would consider D1 as suitable prior art to make the invention, confirmed by the reference to D1 in the original application, the disclosure of D1 could not be considered as being accidental within the meaning of G 1/03. Furthermore, since D1 related to the same technical effect as the patent in suit, and since its starting polymers to be cured were structurally identical to those used in the claimed process, D1 could be considered as a suitable starting point for assessing inventive step.

The decision in T 14/01 concerned the allowability of a disclaimer aimed at removing an overlap with prior art in view of G 1/03. According to the board in this case, the allegation that a teaching extracted from prior art led away from the invention implied that the skilled person had taken this prior art into consideration. Yet for an anticipation to be accidental it was necessary that the skilled person would have never taken it into consideration. The board then decided that the prior art in question was not accidental in the sense of G 1/03, and that the disclaimer was not admissible.

In T 1297/12 document D3 itself was not unrelated and remote since it related to the same field as the patent in suit. However the appellant/patent proprietor argued that the specific novelty destroying disclosures in D3 were "unrelated and remote". The board cited T 14/01 and held that the fractions were disclosed **in a relevant document**, D3, and so could not be considered to represent an "accidental" disclosure.

In T 1049/99 the board concluded that, contrary to what the respondent (patent proprietor) claimed, the skilled person would have taken the teaching of document D21 into consideration when working on the invention in search of a solution to the technical problem defined by the respondent, using appropriate and relevant means to resolve his problem **in the same technical field** as that of the patent in suit. Moreover, contrary to the respondent's conclusions at the hearing, the board stressed that the fact that a document was difficult to find in published prior art or was difficult for the skilled person to access was not sufficient to justify the conclusion that it constituted an accidental anticipation.

In T 217/03, on the issue of whether document D1 was an accidental anticipation, the board stated that D1 did not deal explicitly with the technical problem underlying the claimed invention. However, that was not decisive for accepting D1 as an accidental anticipation. The board concluded that D1 related to the same general technical field as that of the subject-matter of claim 10 and was not from a technical point of view so unrelated and remote that the person skilled in the art would never have taken it into

consideration when working on the invention (see G 1/03, OJ 2004, 413). Thus the disclosure of D1 could not be considered to constitute an accidental anticipation.

In T 1146/01 the board held that comparative examples of D1, although teaching what not to do, nevertheless served to elucidate the teaching of the document as a whole and were closely related to the other experiments disclosed in the document. Although it could be said that a comparative example had a "negative relevance", it was neither remote from nor unconnected from the disclosure in the document. Thus, although the comparative examples of D1 provided a teaching not to be followed, this did not mean that their information was not part of the disclosure of D1 or would not be considered by an inventor working on his invention.

In T 1218/14 the board clarified the meaning of the criterion mentioned in G 1/03 (OJ 2004, 413) that an accidentally novelty-destroying disclosure had to be completely irrelevant for inventive step. The finding that the claimed subject-matter was inventive in view of D1 as a secondary document did not mean that D1 was irrelevant to inventive step within the meaning of this criterion. This criterion had to be understood not as an alternative, or additional criterion, but as a consequence of the criterion in G 1/03 and G 1/16 (OJ 2018, A70) that, from a technical point of view, said disclosure was so unrelated and remote that the person skilled in the art would never have taken it into consideration when making or working the invention.

Other decisions too have had to establish whether or not the anticipation was accidental. In the following decisions, the boards ruled that the anticipation was **not** accidental and that the disclaimers were therefore inadmissible: T 1086/99, T 584/01, T 506/02, T 285/00, T 134/01 (field of pharmaceuticals, same illness; findings summarised by the board in T 1911/08, in which account was also taken of T 739/01, T 580/01 and T 639/01), T 351/12, T 632/12. For decisions in which the boards found that the anticipation was accidental, see e.g. T 717/99 and T 3077/19 (technical field of E4, namely car blankets, considered remote from therapeutic treatment).

b) Drafting of disclaimers – disclaimer to remove no more than necessary

Regarding the drafting of disclaimers, the Enlarged Board of Appeal stated in G 1/03 and G 2/03 (OJ 2004, 413 and 448) and confirmed in G 1/16 (OJ 2018, A70) that the disclaimer should not remove more than was necessary to restore novelty or to disclaim subject-matter excluded from patentability for non-technical reasons. The need for a disclaimer was not an opportunity for the applicant to reshape his claims arbitrarily. In G 2/10 (OJ 2012, 396) the Enlarged Board held that the requirement that "the disclaimer should not remove more than is necessary to restore novelty" was not suitable for the disclaiming of disclosed subject-matter, since in that case the wording of the disclaimer must be configured in accordance with the disclosure of the disclaimed subject-matter in the application as filed.

As to the relationship between the requirement that "the disclaimer should not remove more than is necessary to restore novelty" and the requirement of clarity and conciseness,

see also T 2130/11 (summarised in chapter II.E.1.7.3.e) "Drafting of disclaimers – clarity" below).

(i) Disclosure of the interfering document not novelty destroying

In T 747/00 the board concluded that since, in the absence of a novelty-destroying disclosure in document (5), the disclaimer removed subject-matter without any need to do so, that disclaimer necessarily removed more than was necessary to restore novelty, which was not allowable (see also T 201/99).

The board in T 1224/14 found that a disclaimer was no longer needed to restore novelty over the prior-art example 5A of D1 because the example had become irrelevant for novelty purposes following a limitation of the claimed subject-matter. The disclaimer thus removed more than was necessary to restore novelty and was therefore at odds with the decision in G 1/03.

(ii) Uncertainty about anticipation by prior art document

In T 1532/16 the disclaimer at issue was held unallowable by the opposition division on the grounds that it could not be concluded with certainty that D5 actually disclosed the subject-matter as defined by the positive features of the claim. The board agreed that the disclaimed examples of D5 could not be seen as providing an unambiguous disclosure of compositions within the terms of the positive features of operative claim 1. However, this did not necessarily mean that the requirements of Art. 123(2) EPC were not met. As the wording of the **examples** was **carefully repeated**, nothing more than what these examples disclosed was potentially removed from the claims; but to the extent that the examples were not novelty destroying, indeed nothing was in fact removed.

(iii) Disclaimer covered more than what was disclosed in the prior art

In T 1050/99 the board concluded that the disclaimer covered more than was disclosed in the prior art and thus removed from the claim more than was necessary to restore novelty. See also T 285/00 which concerned a disclaimer largely not based on the disclosure of a prior art document cited under Art. 54(3) EPC 1973, thereby rendering the remaining claimed subject-matter more distant from a relevant prior art document cited under Art. 54(2) EPC 1973.

In T 10/01 the scope of the disclaimer was broader than was necessary to restore novelty. The board nevertheless referred to point 3 of the Reasons for G 1/03, saying that it could also be inferred from that decision that a disclaimer that was broader than strictly necessary to restore novelty might be allowed, depending on the circumstances of the case, if that proved necessary to prevent any lack of clarity in the claim that might otherwise result. However, in the case at issue there was no apparent justification for the disclaimer being broader than the disclosure in document (1).

In T 8/07, however, the board observed that G 1/03 had stated that a disclaimer may serve exclusively the purpose for which it is intended. Further, the necessity for a disclaimer was